

the defendant in London, and became nonsuit in Banco; yet the defendant, upon a habeas corpus, had his privilege, because he had cause of privilege at the time of the arrest, 14 H. 7, 6, Br. Privilege, n. 19.

The like case 9 E. 4, where a man appear'd in Banco, by a cepi corpus, and found mainprise, and had a day to appear in Court, and before his day was arrested in London, and brought a corpus cum causa in Banco Regis, at which day the plaintiff be-[157]-came nonsuit, yet he was discharg'd from the serjeant at London, because his arrest there was after his arrest in Banco, and consequently unlawful, 9 E. 4, f. 47, Br. Privilege, 24, and a man cannot be imprison'd at the same time lawfully in two Courts.

The Court of Kings Bench cannot pretend to the only discharging of prisoners upon habeas corpus, unless in case of privilege, for the Chancery may do it without question.

And the same book is, that the Common Pleas or Exchequer may do it, if upon return of the habeas corpus, it appear the imprisonment is against law.

An habeas corpus may be had out of the Kings Bench or Chancery, though there be no privilege, &c. or in the Court of Common Pleas, or Exchequer, for any officer or privileg'd person there; upon which writ the gaoler must return by whom he was committed, and the cause of his imprisonment; and if it appeareth that his imprisonment be just and lawful, he shall be remanded to the former gaoler; but if it shall appear to the Court that he was imprisoned against the law of the land, they ought, by force of this statute, to deliver him; if it be doubtful and under consideration, he may be bayl'd.—The Kings Bench may bayl, if they please, in all cases; but the Common Bench must remand, if the cause of the imprisonment return'd be just.

The writ de homine replegiando, is as well returnable in the Common Pleas, as in the Kings Bench.

All prohibitions for inroaching jurisdiction issue as well out of the Common Pleas as Kings Bench.

Quashing the order of commitment upon a certiorari, which the Kings Bench may do, but not the Common Pleas, is not material in this case.

1. The prisoner is to be discharg'd or remanded barely upon the return, and nothing else, whether in the Kings Bench, or Common Pleas.

2. Should the Kings Bench have the order of commitment certified and quash'd, before the return of the habeas corpus, or after, what will it avail the prisoners; they cannot plead nul tiel record, in the one case or the other.

3. In all the presidents shew'd in the Common Pleas, or in any that can be shew'd in the King's Bench, upon discharging the prisoner by habeas corpus, nothing can be shew'd of quashing the orders or decrees of that Court, that made the wrong commitment.

[158] 4. It is manifest, where the Kings Bench hath, upon habeas corpus, discharg'd a prisoner committed by the Chancery, the person hath been again re-committed for the same cause by the Chancery, and re-deliver'd by the Kings Bench; but no quashing of the Chancery order for commitment ever heard of.

5. In such cases of re-commitment, the party hath other and proper remedy besides a new habeas corpus; of which I shall not speak now.

6. It is known, that if a man recover in assise, and after in a re-disseisin, if the first judgment be revers'd in the assise, the judgment in the re-disseisin is also revers'd. So if a man recover in waste, and damages given, for which debt is brought (especially if the first judgment be revers'd before execution) it destroys the process for the damages in debt, though by several originals. But it may be said, that in a writ of error in this kind, the foundation is destroy'd, and no such record is left.

But as to that in *Drury's case*, 8 Rep. an outlawry issued, and process of capias upon the outlawry, the sheriff return'd, non est inventus; and the same day the party came into Court and demanded oyer of the exigent, which was the warrant of the outlawry; and shew'd the exigent to be altogether uncertain and insufficient, and consequently the outlawry depending upon it to be null. And the Court gave judgment accordingly, though the record of the outlawry were never revers'd by error; which differs not from this case, where the order of commitment is judicially declar'd illegal, though not quasht or revers'd by error, and consequently whatever depends upon it, as the fine and commitment doth, and the outlawry in the former case was more the Kings interest, than the fine in this.